



CHAPTER 4.

An Act to enable courts of law in Scotland to make orders as to the custody, maintenance and education of and access to minor children under the age of sixteen. [28th February 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The powers of any court whether at common law or under any enactment to make orders as to the custody, maintenance or education of, or access to, pupil children shall extend to minor children under the age of sixteen, and accordingly in any enactment relating to any such power a reference to a pupil child shall be construed as a reference to a child under sixteen years of age.

Powers of courts as to custody of children to extend to children under sixteen.

(2) Any such order as aforesaid regarding a pupil child made before the passing of this Act which would, according to the law in force immediately prior thereto, have ceased to have effect on the child's becoming a

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Custody of Children
(Scotland) Act, 1939.

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minor shall, unless recalled or varied by a competent court, remain in force until the child attains the age of sixteen.

Extent and
short title.

2. This Act shall extend to Scotland only, and may be cited as the Custody of Children (Scotland) Act, 1939.

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